

# HOUSE . . . . . No. 1854

---

## The Commonwealth of Massachusetts

PRESENTED BY:

*Jay D. Livingstone*

*To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:*

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to fires and explosions.

PETITION OF:

| NAME:                     | DISTRICT/ADDRESS:  | DATE ADDED:      |
|---------------------------|--------------------|------------------|
| <i>Jay D. Livingstone</i> | <i>8th Suffolk</i> | <i>1/15/2025</i> |

# HOUSE . . . . . No. 1854

---

By Representative Livingstone of Boston, a petition (accompanied by bill, House, No. 1854) of Jay D. Livingstone relative to the penalties for causing fires and explosions. The Judiciary.

---

## The Commonwealth of Massachusetts

\_\_\_\_\_  
In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
\_\_\_\_\_

An Act relative to fires and explosions.

*Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:*

1           SECTION 1. Chapter 266 of the General Laws, as so appearing in the 2022 Official  
2 Edition, is hereby amended by inserting after section 8 the following section: -

3           Section 8A. Any person who, as a result of or in the course of unlawfully and  
4 intentionally manufacturing a controlled substance as defined by section 31 of chapter 94C,  
5 causes a fire or explosion that causes personal injury, whether to such person himself or to other  
6 persons, or that causes damage to a dwelling house, as defined in section 1 of this chapter, a  
7 structure, a building, a motor vehicle, a boat or to any other conveyance, or to real property,  
8 whether such property is owned by such person or by another, or is apparently abandoned, shall  
9 be punished by imprisonment in the state prison for not more than ten years, or by imprisonment  
10 in a jail or house of correction for not more than two and one half years.

11           SECTION 2. Section 5 of Chapter 266 is hereby amended by adding as a second  
12 paragraph the following: -

Any person who, without authorization of the school administration, intentionally sets fire to, burns, or causes to be burned any property within any building or structure of an elementary or secondary school, a college or university, or on the grounds thereof, shall be punished by imprisonment in a jail or house of correction for not more than two and one half years.

SECTION 3. Section 7 of Chapter 266 is hereby amended by adding as a second paragraph the following: -

Whoever by wantonly or recklessly sets or uses fire or any incendiary or explosive device or material, including but not limited to fireworks, and causes danger to the property or safety of another shall be punished by a fine of not more than one thousand dollars or by imprisonment for not more than two years.

SECTION 4. Chapter 266 is hereby amended by striking out Section 8 as appearing in the 2012 Official Edition, and inserting in place thereof the following paragraph: -

Section 8. Whoever, without the consent of the owner, sets or increases a fire upon land of another whereby the property of another is injured, or whoever negligently or willfully suffers any fire, set upon his own land or upon land of another by consent of the owner, to extend beyond the limits thereof so to cause injury to the woods or property of another, if the cost to restore or replace the property damaged does not exceed \$5,000, shall be punished by a fine of not more than one thousand dollars or by imprisonment for not more than two years; if the cost to restore or replace the property damaged equals or exceeds \$5,000, such person shall be punished by imprisonment in the state prison for not more than five years, or by imprisonment in a jail or house of correction for not more than two and one half years. The town where such fire

- 35 occurred may recover in an action of tort, brought within two years after the cause of action
- 36 accrues, against any such person the expense of extinguishing such fire.